

5.1 Home Health Agencies, Private Duty Aides or Companions

.....Revised 05/01/2018 Reviewed 05/01/2018

Policy Purpose

Merrill Gardens Communities, under certain circumstances, can authorize the use of home health providers, private duty aides, or companions. Such authorization must comply with state regulatory requirements, and meet the standards upon which Merrill Gardens Communities operate.

Definitions

Companion:

See Private Duty Aide

Home Health Agency:

State licensed agency providing licensed personnel to provide specific health services to a resident.

Independent Private Duty Aide or Companion:

A private duty aide working independently of an agency, providing the same types of services to a resident and meeting all state specific requirements for such.

Private Duty Aide or Companion:

State licensed agency staff, providing private duty services and/or companionship to a resident.

Guidelines

Home Health Providers

The use of home health providers in Merrill Gardens Communities is authorized provided:

- The state licensing authority allows for the services to be provided.
- The provider is licensed, insured, bonded, and approved by the Community General Manager.
- The cost of the service is borne by the resident and the resident's family.
- There is a physician order in place indicating need for service.

Unlicensed Communities

For an unlicensed Community, state regulations may dictate the percent of the resident population that can use home health providers. Unlicensed Communities should monitor such use on an ongoing basis to check compliance. Records will be maintained as to the number of residents who have home health providers.

Agency Providers

In order to provide service to residents at a Merrill Gardens Community, in-home care agencies must comply with applicable state regulations and:

- If the resident/responsible party chooses to retain the services of a private duty aide or provider from an in-home care agency, then they must hire an agency that is licensed or otherwise registered under applicable state regulations.
- The agency must provide the administration of the Community with:
 - A copy of a valid agency license as required by the state.
 - A copy of the agency policy to provide only appropriately screened (health and criminal background) and qualified personnel; or the same written on agency letterhead and signed by an authorized representative of the agency. Criminal background checks, conducted by in-home care agencies, must comply with the state and community requirements.
 - A copy of the agency current certificate of liability insurance in an amount not less than \$1,000,000 per occurrence.

The above records are to be kept on file in the community for review. Copies of records relating to the above for individual private duty providers from the agency are to be made available to the community upon request.

Independent Care Providers

In order to provide service to residents at a Merrill Gardens Community, private duty aides/companions who are not from a licensed agency must comply with applicable state regulations and Merrill Gardens policies and:

- Each independent private duty service provider must complete and submit to Merrill Gardens a *Private Duty Service Provider Registration and Information* form. This form must be updated every time the private duty provider proposes to provide services to another resident at a Merrill Gardens Community.
- Each independent private duty aide/provider must receive copies of *Requirements for Private Duty Providers and Rules of Conduct for Private Duty Providers*, and sign an *Acknowledgement and Indemnification* form.
- Each independent private duty provider must complete state approved criminal background screening upon initiation of a service agreement with the resident. A copy of the results is to be kept on file at the community with personnel records.
- The resident/responsible party must sign and comply with the *Waiver and Release and Insurance* form. Private duty providers must obtain a general liability insurance policy in an amount not less than \$1,000,000 to cover all liabilities arising out of conduct of the private duty provider including, but not limited to all acts, omissions, accidents, negligence or misconduct. This requirement may be modified or waived upon approval of the President.

SC: *Private sitters employed by residents are included in this policy. Prior to resident contact, private sitters must have documented orientation consisting of at least: Resident rights, Confidentiality, Disaster preparedness, Emergency response procedures, Safety procedures and precautions, and Infection control.*

Private sitters must provide the Community with a health assessment done within 12 months, a criminal record check, and determination of Tb status. The resident is responsible for all costs of providing this orientation and obtaining the required documentation.

WA: *Consistent with RCW 18.20.380 (1), unlicensed private duty care providers are not permitted to provide onsite care and services to residents. If the resident or responsible party chooses to retain the services of a licensed independent private duty provider, they must comply with this policy.*

Release of Information and Confidentiality

A resident who wishes to receive private duty service must sign a release of information so that the Community and private duty care provider can coordinate services and respond appropriately to changes in condition or emergency situations. This approval should be documented using the *Release of Information and Confidentiality* form

Health and Background Checks

Health screening and criminal checks will be conducted on all private duty service providers operating in a Merrill Gardens Community, as required by state regulations. Costs for such reference checks will be borne by the in-home agency or the individual private duty aide/companion. Verification of reference check and health screening results must be provided to the Community upon request. This information is to be placed in a file and kept with personnel records. The Community has the right to refuse to allow individuals to operate in the Community if character, appearance, or skills do not conform to Merrill Gardens' policies and/or standards for service and care.

Coordination of Care

Community and agency staff should follow the guidelines below to help facilitate coordination of care:

- In all cases, Community staff members have the right to observe and monitor residents who receive private duty services. Concerns should be reported immediately to the Community Administration.
- All private duty aides/companions must sign in and out each time they see a resident in our Community and provide a written record of services provided at the time of service.
- All private duty aides/companions must display identification while in the Community.
- Private duty aides must also provide a copy of the plan of services and any necessary revisions to the Community to be incorporated into the resident's Service Plan.
- The Community will coordinate provision of services with the private duty aide/companion so that the resident receives needed services.
- In the event the private duty aide fails to provide needed services, the Community will facilitate obtaining or providing that service at the resident's expense.



Registration and Information

Private Duty Service Aides/Companions

To be completed by each individual working as a private duty Service Aide/Companion
Aide/Companion Information:

- Name: _____
- Address: _____
- Phone: _____
- Name, address & phone of Agency, if applicable: _____

- Professional License # if applicable: _____
- Vehicle make & model: _____ License #: _____
- Person to contact in case of emergency: _____

Address & phone number: _____

Identify All Residents Who Will Receive Your Services:

1. Name & Unit #: _____ Phone #: _____
2. Name & Unit #: _____ Phone #: _____
3. Name & Unit #: _____ Phone #: _____
4. Name & Unit #: _____ Phone #: _____
5. Name & Unit #: _____ Phone #: _____

To be completed by Merrill Gardens

I have reviewed this Registration and Information Form and verified the information listed below and approve of having this person work on the premises of Merrill Gardens, subject to all rules, regulations, policies & procedures governing private duty Aides/Companions.

Signature and Title _____

Date _____

Criminal Clearance Verification & Date

Negative Tuberculin Screening & Date



Requirements for Private Duty Service Aides/Companions

Every private duty service aide/companion and in-home agency employee (referred collectively hereinafter as "service provider") providing services to residents in their apartments at Merrill Gardens must comply with all of the following requirements as a condition of obtaining access to a Merrill Gardens Community.

- **Registration Form.** Each service provider must complete and submit to Merrill Gardens an *Attendant Registration and Information form*. This form must be updated every time the service provider proposes to provide services to another resident at a Merrill Gardens community.
 - **Criminal Record Clearance.** Each service provider must submit a criminal record clearance to Merrill Gardens. The clearance is obtained at the service provider's expense and must comply with state requirements.
 - **Name Badge.** Service providers must wear name badges at all times while on Merrill Gardens premises. Name badges must be provided by the service provider.
 - **Acknowledgement and Indemnification.** Each service provider must receive and comply with these *Requirements for Private Duty Service Aides/Companions* and any other policies and procedures Merrill Gardens develops governing service providers provision of services in resident apartments. Each service provider must also sign a copy of an *Acknowledgement and Indemnification form* in which he or she acknowledges receipt of such documents and agrees to hold Merrill Gardens harmless for any claims or actions arising from his or her services. Service providers must be qualified to provide those services.
- Tuberculosis Test.** Each service provider must provide a copy of a current negative Tb skin test or chest x-ray, or agency notification of Tb clearance. Such tests must be updated annually.
- **Resident Status Reports & Logs.** Merrill Gardens reserves the right to require service providers to provide at each visit to the resident, a report regarding the resident's health status and the nature of the services provided to the resident. In addition, all service providers must sign in and out of the Community on a log kept for such purpose at Merrill Gardens.
 - **No Solicitation or Loitering.** Merrill Gardens strictly prohibits solicitation of business and loitering on its premises. Each service provider shall report as required by Merrill Gardens immediately before his or her appointment with the resident and shall leave the premises immediately after the provision of services. In addition, each service provider shall have access only to areas of Merrill Gardens necessary to obtain access to the resident's apartment, to meet the resident's needs, or to use the public telephone or restrooms.
 - **Driving Information.** If a service provider wishes to have a resident ride in his or her vehicle, the service provider must also submit to Merrill Gardens a copy of a valid driver's license & certificate of insurance.
 - **Requirements.** Meals, breaks, entrance, name badges, parking, solicitation, telephone and any other policies and procedures that govern service providers specific to Merrill Gardens will be addressed with the service provider by the General Manager/Administrator or designee.
 - **Services.** A service provider may only perform services for residents that cannot be provided by Merrill Gardens' staff. Further, the service provider may only provide those services that the state licensing authority allows to be performed in that setting. A service provider may not perform services for any resident other than those they have listed on the *Registration and Information form*.



MERRILL
GARDENS

Rules of Conduct for Private Duty Aides/Companions

Merrill Gardens permits private duty aides/companions to provide services to residents in their apartments provided that such personnel comply with various policies and procedures developed by Merrill Gardens for the engagement of service providers, including the *Requirements for Private Duty Aides/Companions*; *Acknowledgement and Indemnification*; and these *Rules of Conduct for Private Duty Aides/Companions*. Any of the following activities or conduct will result in a Private Duty Aide's/Companion's immediate loss of privileges to enter Merrill Gardens to provide services to any resident.

1. Verbal or physical abuse;
2. Theft;
3. Use of any drug illegally on premises;
4. Alcohol use on premises;
5. Possession of dangerous weapons on premises;
6. Sleeping on duty, when inappropriate;
7. Failure to sign in or out at the required location;
8. Indecent or immoral conduct on the premises;
9. Willful damage of property;
10. Soliciting contributions, donations, tips, gifts, or employment;
11. Failure to follow rules, regulations, policies, or procedures governing private duty care providers;
12. Failure to honor Residents Rights;
13. Failure to abide by parking restrictions;
14. Charging more than one resident for services during the time allotted for any resident's appointment;
15. Failure to follow smoking restrictions;
16. Failure to report any resident injury or change of condition immediately to Merrill Gardens;
17. Disruptive conduct;
18. Unauthorized distribution of literature;
19. Malicious gossip, spreading of rumors, harassment, or discriminatory remarks or accusations;
20. Use of telephone other than for services for the resident (making appointments, etc.) and/or excessive use of telephone;
21. Failure to maintain basic personal hygiene, cleanliness and appropriate attire;
22. Unauthorized use of dining and break rooms;
23. Unauthorized entry into any room or apartment not necessary for provision of services to resident;
24. Unsanitary work practices or contribution to unsanitary work conditions;
25. Failure to update *Registration and Information Form*;
26. Failure to update Tuberculosis Test Verification and/or Criminal Clearance Verification;
27. Other conduct deemed to constitute good cause for loss of privileges.



Acknowledgement and Indemnification

I, _____

(print name of private duty aide/companion)

wish to provide private duty services to one or more residents of Merrill Gardens. I understand and agree that my access to Merrill Gardens to provide such services is conditioned upon my compliance with all of the following terms:

1. I understand and agree that I am not an employee of Merrill Gardens, which exercises no control over my compensation or the agreement that I have entered into for providing private duty services and that I am responsible for my own actions for the services I provide the resident.
2. I agree not to represent to any person at any time that I am an employee of Merrill Gardens. I further agree not to seek any employee benefits offered to Merrill Gardens employees, including, but not limited to, workers' compensation insurance, unemployment insurance, disability insurance, vacation pay, and sick pay.
3. I understand and agree that my employer is/are the resident(s), his or her responsible person, or an outside agency which is unrelated to Merrill Gardens, and that such resident, responsible person or agency shall be responsible for paying for my services, providing workers' compensation and other employee benefits to me, and making appropriate payroll deductions on my behalf. I also understand and agree that my employer must have general liability insurance that covers me.

I agree to release, indemnify, and hold Merrill Gardens harmless from and against any claims, demands, liabilities, losses, and damages, in any way arising out of or related to my services as a private duty aide/companion, or my presence at Merrill Gardens, unless such damage results directly from negligence of Merrill Gardens.

5. I understand and agree that my access to Merrill Gardens is limited to that access which is necessary to provide services to the resident, to meet the resident's needs, or to use the public telephone or restrooms. I understand that I shall have access to no other area without the prior express written consent of Merrill Gardens.
6. I understand that Merrill Gardens may obtain information from the Department of Motor Vehicles or my insurance company regarding my driving record and that Merrill Gardens may, in its discretion, preclude me from providing transportation to its residents. I hereby consent to Merrill Gardens obtaining such information.
7. I agree to abide by *Requirements for Private Duty Aides/Companions, Rules of Conduct for Private Duty Aides/Companions*, and any other rules, regulations, policies, or procedures that Merrill Gardens develops, now or in the future, regarding the conduct of private duty aides/companions.
8. By signing below, I agree to the terms of this Acknowledgement and Indemnification and I acknowledge the receipt of the *Requirements for Private Duty Aides/Companions, Rules of Conduct for Private Duty Aides/Companions*, and *Registration and Information Form*.

Signature

Date



WA-Retention of Outside Private Duty Service Providers Acknowledgement of Resident Responsibility

You, as a resident of Merrill Gardens, have elected to retain the services of an outside private duty service provider who is not connected with Merrill Gardens. This service provider may or may not be licensed to provide private duty services in the State of Washington. In order to protect your interests and the interests of the other residents of this community we request that you determine whether the service provider is licensed.

If the individual is licensed his/her conduct will be governed by Merrill Gardens' *"Requirements for Licensed Private Duty Care Providers"* and Merrill Gardens' *"Guidelines for Residents for the Employment of Licensed Private Duty Care Providers"*. Copies of both of these forms have been provided to you and you should provide copies to your private duty service provider. If you need additional copies they will be provided. The licensed outside service provider is also required to complete a *Registration and Information* form.

If the individual is unlicensed his/her conduct will also be governed by Merrill Gardens' *"Requirements for Licensed Private Duty Care Providers"* and Merrill Gardens' *"Guidelines for Residents for the Employment of Licensed Private Duty Care Providers"*. Copies of both of these forms have been provided to you and you should provide copies to your private duty service provider. If you need additional copies they will be provided. The unlicensed outside service provider is also required to complete a *Registration and Information* form. In some instances, it may be unwise to employ unlicensed individuals. We urge you to take all reasonable precautions to ensure that the unlicensed private duty service provider is a reputable business or person operating in your best interests.

Merrill Gardens requires that all licensed and unlicensed private duty service providers obtain and maintain a general liability insurance policy to cover all liabilities arising out of their conduct. In some instances, the insurance requirement can be waived by Merrill Gardens upon the request of the private duty service provider. While Merrill Gardens may agree to waive the insurance requirement it is not an endorsement of the private duty service provider. Nor is the decision not to enforce the insurance requirement an explicit or implicit attempt to indemnify or hold the private duty service provider harmless for actions or inactions toward Merrill Gardens or its residents. In fact, Merrill Gardens advises its residents not to retain private duty service providers

who do not have general liability insurance coverage. Failing to retain a private duty service provider with insurance coverage could mean that you will have little or no recourse against the private duty service provider in the event of their negligence, misconduct, or breach of contract.

By signing this document, you acknowledge that consistent with RCW 18.20.280 and .380 Merrill Gardens is not required to supervise the activities of outside private duty service providers independently arranged for or contracted with by you to provide personal services. You further acknowledge that when outside private duty services are provided, Merrill Gardens' responsibilities are limited to observation for changes in overall functioning; notification of these changes to you or your representative, and appropriately responding to obtain needed assistance when there are observable or reported changes in your physical or mental functioning.

Resident Signature

Date

Print Resident Name

Family/Responsible party Signature

Date

Print Family/Responsible party Name

Relationship to Resident



Waiver and Release and Insurance

For Use with Private Duty Aides/Companions

The resident and/or responsible party specified below has elected to retain private duty aides/companions from individuals or agencies unaffiliated with Merrill Gardens. This decision has been made despite the resident and/or responsible party being made aware of the potential problems and risks that can occur upon the hiring of such private duty aides/companions or contracting with in-home agencies. The resident and/or responsible party agrees that Merrill Gardens has no obligation to check or investigate the background of the private duty aides/companions retained. The resident and/or responsible party hereby waives, and releases Merrill Gardens from any and all claims, causes of action, demands, obligations, damages or liability asserted or arising out of or incidental to any dealings between the resident and the private duty aides/companions retained. The resident and/or responsible party shall further indemnify Merrill Gardens for any costs incurred by Merrill Gardens relating to any breach of contract, negligence or misconduct of such private duty aides/companions.

The resident and/or responsible party shall obtain a general liability insurance policy in the sum of \$1,000,000 naming Merrill Gardens and the specific community as an additional insured to cover all liabilities arising out of conduct of private duty aides/companions, and the resident and/or responsible party. The resident and/or responsible party will submit a Certificate of Insurance for this policy and an additional insured endorsement naming Merrill Gardens and the specific community where the resident resides as additional insureds within 10 days of the private duty aides/companions reporting to work for the resident and will provide evidence of all renewals within 10 days of the expiration of the coverage period. The resident and/or responsible party agrees to have the insurance company immediately send Merrill Gardens notice of any lapse in coverage. The resident and/or responsible party agrees that no private duty aides/companions may be on Merrill Gardens' premises during any lapse of insurance coverage.

Signature of Resident/Authorized Representative

Date

Printed Name of Resident/Authorized Representative

Date



WA-Waiver and Release and Insurance For use of Private Duty Service Providers

The private duty service provider or agency (provider) unaffiliated with Merrill Gardens specified below has elected to provide services to individuals residing in the Community. The provider hereby waives and releases Merrill Gardens from any and all claims, causes of action, demands, obligations, damages or liability asserted or arising out of or incidental to any dealings between the resident and the provider retained. The private duty service provider shall further indemnify and hold harmless Merrill Gardens for any costs incurred by Merrill Gardens relating to any breach of contract, negligence or misconduct of such private duty service providers.

The private duty service provider shall obtain a general liability insurance policy in the sum of \$1,000,000 to cover all liabilities arising out of conduct of private duty care providers. The private duty service provider will submit a Certificate of Insurance for this policy within 10 days of the private duty service provider reporting to work for the resident, and will provide evidence of all renewals within 10 days of the expiration of the coverage period. The private duty service provider agrees to notify Merrill Gardens immediately of any lapse in coverage. The private duty service provider agrees that no private duty service provider may be on Merrill Gardens' premises during any lapse of insurance coverage.

The private duty service provider may request a waiver of this requirement. The waiver request should specify why the waiver is sought and all factual circumstances, including financial necessity justifying the waiver. In the event a waiver is requested by the private duty service provider and approved by Merrill Gardens, the private duty service provider will inform the resident that the service provider is operating without insurance and that the service provider has agreed to waive and release Merrill Gardens from any liability associated with the provision of private duty services on Merrill Gardens' property. The private duty service provider will obtain written consent from the resident acknowledging that the provider is operating without insurance and further acknowledging that the service provider has waived and released Merrill Gardens from any and all liability associated with the provision of private duty services on Merrill Gardens' premises. A copy of this consent will be provided to Merrill Gardens prior to the provision of any services by the private duty service provider on Merrill Gardens' property.

Signature of Provider/Authorized Representative

Date

Printed Name of Provider/Authorized Representative

Date



Guidelines for Residents on the Employment of Private Duty Aides/Companions

The following guidelines are intended to assist residents in the employment of private duty aides/companions including in-home agency personnel in their apartments. These guidelines are not intended to be legal advice.

1. If you engage a private duty aide/companion, he or she is your employee. Accordingly, you are responsible for all wages, employee benefits, payroll withholdings, workers' compensation insurance, and other responsibilities of employers to employees. As discussed in the *Waiver and Release and Insurance Form*, you are also responsible for obtaining general liability insurance.
2. As you would do when employing any person, you should provide for workers' compensation insurance coverage.
3. You should keep adequate records of your employment of your employee, including hours worked, wages paid, absences, and other pertinent facts. Business details such as the rate of pay, payment schedule, work schedule, payment of Social Security benefits, and provision of workers' compensations and liability insurance, must be arranged between you and your employee.
4. Confirm that your employee is a citizen of the United States of America, or that he or she has a valid work permit. Complete form I-9, a copy of which may be obtained from Merrill Gardens.
5. Confirm that your employee is 18 years of age or older.
6. If your employee will have occasion to drive your vehicle, confirm that he/she has a valid driver's license and that your vehicle insurance policy covers additional drivers. A copy of your employee's driver's license must be on file with Merrill Gardens.
7. For your own protection, we suggest that you check your employee's references.
8. Confirm that your employee is working only for you and not billing his or her time to another resident during your scheduled appointment.

9. Your employee must receive, become familiar with, and comply with *Requirements for Private Duty Aides/Companions*, *Rules of Conduct for Private Duty Aides/Companions*, and any other policies and procedures developed by Merrill Gardens regarding the employment of private duty aides/companions. In addition, your employee must sign an *Acknowledgement and Indemnification*, in which he or she acknowledges receipt of these documents, agrees that he or she is not an employee of Merrill Gardens, and releases Merrill Gardens from liability for claims or losses in any way related to his or her services.
10. Any injuries to your employee must be reported immediately to the administration of Merrill Gardens. Injury report forms are available from administration.
11. If any problems or conflicts involving your employee arise, we urge you to bring them to the attention of the administration.
12. Whenever you employ or engage the services of a new or substitute private duty aide/companion, you must notify the administration and furnish the documents described in Paragraph 9 above to the aide/companion. You shall also follow the procedures described in Paragraphs 1 through 11 above with respect to every aide/companion you employ.
13. When private duty services are the basis of the authorization for a resident to remain in his/her apartment, the resident is obligated to report immediately any absence of any private duty services.
14. Many residents prefer to contact an in-home agency to receive the services. Such agency will be deemed the employer of the aide/companion and will address many of the concerns described in Paragraphs 1 through 7 above.
15. Merrill Gardens reserves the right to exclude any private duty aide/companion from Merrill Gardens. You may not utilize the services of any private duty aide/companion who has been excluded from Merrill Gardens.
16. Merrill Gardens reserves the right to eliminate or amend its policy on allowing private duty aides/companions to provide any or some services at Merrill Gardens.



WA Guidelines for Residents on the Employment of Private Duty Aides/Companions

The following guidelines are intended to assist residents in the employment of private duty aides/companions including in-home agency personnel in their apartments. These guidelines are not intended to be legal advice. Only licensed health care providers or licensed agencies may be hired by residents. The hiring of unlicensed care providers to provide onsite care and services is not permitted.

1. If you engage a private duty aide/companion, he or she is your employee. Accordingly, you are responsible for all wages, employee benefits, payroll withholdings, workers' compensation insurance, and other responsibilities of employers to employees.
2. As you would do when employing any person, you should provide for workers' compensation insurance coverage.
3. You should keep adequate records of your employment of your employee, including hours worked, wages paid, absences, and other pertinent facts. Business details such as the rate of pay, payment schedule, work schedule, payment of Social Security benefits, and provision of workers' compensations and liability insurance, must be arranged between you and your employee.
4. Confirm that your employee is a citizen of the United States of America, or that he or she has a valid work permit. Complete form I-9, a copy of which may be obtained from Merrill Gardens.
5. Confirm that your employee is 18 years of age or older.
6. If your employee will have occasion to drive your vehicle, confirm that he/she has a valid driver's license and that your vehicle insurance policy covers additional drivers. A copy of your employee's driver's license must be on file with Merrill Gardens.
7. For your own protection, we suggest that you check your employee's references.
8. Confirm that your employee is working only for you and not billing his or her time to another resident during your scheduled appointment.

9. Your employee must receive, become familiar with, and comply with *Requirements for Private Duty Aides/Companions, Rules of Conduct for Private Duty Aides/Companions*, and any other policies and procedures developed by Merrill Gardens regarding the employment of private duty aides/companions. In addition, your employee must sign an *Acknowledgement and Indemnification*, in which he or she acknowledges receipt of these documents, agrees that he or she is not an employee of Merrill Gardens, and releases Merrill Gardens from liability for claims or losses in any way related to his or her services.
10. Any injuries to your employee must be reported immediately to the administration of Merrill Gardens. Injury report forms are available from administration.
11. If any problems or conflicts involving your employee arise, we urge you to bring them to the attention of the administration.
12. Whenever you employ or engage the services of a new or substitute private duty aide/companion, you must notify the administration and furnish the documents described in Paragraph 9 above to the aide/companion. You shall also follow the procedures described in Paragraphs 1 through 11 above with respect to every aide/companion you employ.
13. When private duty services are the basis of the authorization for a resident to remain in his/her apartment, the resident is obligated to report immediately any absence of any private duty services.
14. Many residents prefer to contact an in-home agency to receive the services. Such agency will be deemed the employer of the aide/companion and will address many of the concerns described in Paragraphs 1 through 7 above.
15. Merrill Gardens reserves the right to exclude any private duty aide/companion from Merrill Gardens. You may not utilize the services of any private duty aide/companion who has been excluded from Merrill Gardens.
16. Merrill Gardens reserves the right to eliminate or amend its policy on allowing private duty aides/companions to provide any or some services at Merrill Gardens.

5.2 Hospice.....Revised 05/01/2018 Reviewed 05/01/2018

Policy Purpose

Many residents provide advance directives indicating the wish for no life-prolonging measures. Therefore, timely consideration of hospice care is crucial to the ability to provide a peaceful death.

Merrill Gardens team members are committed, when medical conditions warrant it, to allow every resident or surrogate decision the option to choose to contract hospice care services as long as the resident does not pose a health and safety threat or violate the personal rights of any other resident. The resident or surrogate decision maker contracts directly with the hospice agency of their choice.

CA: A hospice waiver will be requested from The Department of Social Services-Community Care Licensing which includes a total care component. If granted, the waiver will be shown on the RCFE license. The hospice waiver will be available at the community for review.

Definitions

Hospice

Services provided by an agency to the dying resident with a focus on comfort care and dignity, without aggressive interventions to prolong life. The agency must be licensed by the state and certified by the federal Medicare program.

Total Care

A condition where residents receiving hospice services depend on others to perform all of their activities of daily living

Guidelines

Initiation of Hospice Services

Follow the guidelines below when a resident wishes to receive hospice care. For initiation of hospice care, please refer to the protocol of the hospice agency.

- If the resident or surrogate decision maker affirms that life prolonging measures are not desired and that they would like the resident to receive hospice care services, a Merrill Gardens team member may communicate this need to the resident's physician or the resident/responsible party may do so directly.
- The resident's primary physician may elect to remain primary during the hospice process or may designate the Hospice Medical Director as primary physician.
- Sometimes, a resident may be failing to thrive. Prominent signs include progressive weight loss over several months, poor arousal, and multiple infections in a short space of time. Community staff should be communicating with the family and physician when this is

observed. The resident may be appropriate for hospice care, which can be discussed with the resident's personal physician. The physician can offer a determination whether the resident is eligible for hospice care and whether death is likely to occur within six months.

- The Community may provide information about a specific hospice agency, but the resident, or surrogate decision maker has the right to decide whether they will contract with any service provider. The hospice agency must comply with Home Health Agencies, Private Duty Aides, Companions policy and provide the Community with all information needed to meet regulatory requirements and to assure the resident's needs are met.

CA: *The Community must notify CCL in writing within 5 working days of the initiation of hospice care services in the community for any resident residing in a licensed apartment. The Community may not exceed the number of Approved Hospice Residents as listed on the RCFE license. The local fire department will be notified within 48 hours of any resident requiring total care hospice.*

Hospice Service Plan

The hospice service plan is to be developed prior to beginning hospice services and agreed to by the resident or surrogate decision maker and the Community. The plan must list all services provided by the agency and address how health conditions and services not normally provided in the community will be handled. A copy of the hospice service plan should be retained with the community service plan and incorporated into it. Any changes to the plan should be communicated between the hospice agency and the community, and the appropriate revisions provided. Though the hospice agency is involved with the resident, the community is still responsible for monitoring the resident's overall of well-being and for seeing that services are being provided according to the agreed upon service plan.

Providing Care to the Resident on Hospice

Hospice services are usually provided as an adjunct to the services that can be provided by the community. The hospice agency can provide services such as nursing assessment, pain management, additional personal care, counseling and support. Merrill Gardens team members, other than appropriately skilled medical professionals, must not perform any procedure that under law may only be performed by an appropriately skilled or licensed medical professional. Hospice services will be permitted in resident apartments. Residents receiving hospice services, who are non-ambulatory, must reside in an apartment rated by the local fire authority for non-ambulatory residents.

CA: *The local fire authority must be notified within 48 hours of the resident becoming bedridden. Notification must include the estimated time the resident will remain bedridden.*

If there is another occupant of the apartment, they will be offered the choice to move to an available apartment. Residents who have needs that are unable to be met in the community will be given a move-out notice in compliance with state regulations and offered assistance with locating an appropriate care setting.